



Republic of the Philippines  
Province of Surigao del Sur  
**MUNICIPALITY OF CARMEN**

POSTED:  
DATE: 09-20-2024  
BY: *my*  
**MA. JULINA B. JUTILLO**  
SB SECRETARY

**TANGGAPAN NG SANGGUNIANG BAYAN**

EXCERPTS FROM THE MINUTES OF THE 95<sup>TH</sup> REGULAR SESSION OF THE 13<sup>TH</sup> SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON SEPTEMBER 17, 2024

**PRESENT:**

Hon. Harvey S. Manawatao ..... Municipal Vice-Mayor/  
Presiding Officer

**REGULAR SANGGUNIANG BAYAN MEMBERS:**

Hon. Carlos S. Estrada ..... SB Member  
Hon. Nilo S. Bigno ..... SB Member  
Hon. Renato A. Calañas ..... SB Member  
Hon. Michael C. Escuyos ..... SB Member  
Hon. Carmelito E. Valeroso ..... SB Member  
Hon. Elvie U. Ohao ..... SB Member  
Hon. Tanie A. Quillano ..... SB Member

**EX-OFFICIO MEMBER:**

Hon. Jeff Anthony D. Beloria ..... SK Federation President

**ON LEAVE:**

**REGULAR SANGGUNIANG BAYAN MEMBER:**

Hon. Rencio P. Valeroso ..... SB Member

**EX-OFFICIO MEMBER:**

Hon. Blandena V. Sugian ..... ABC President

**SECTORAL REPRESENTATIVE:**

Hon. Ricardo S. Iligan ..... IP Mandatory Representative

**ORDINANCE NO. 19**  
**Series of 2024**

**"AN ORDINANCE PROHIBITING GAMBLING AND OTHER ILLEGAL GAMING IN THE MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR AND IMPOSING PENALTIES THERETO AND FOR OTHER PURPOSES"**

Author : Hon. Carmelito E. Valeroso

Co- author: Hon. Renato A. Calañas

Enacted: All Members present

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### EXPLANATORY NOTE

Gambling has been identified as a social menace that undermines the values of hard work, honesty, and self-reliance, and contributes to the rise of crime, addiction and other social problems.

The Municipality of Carmen, Surigao del Sur, recognizes the need to regulate and control gambling activities in order to promote public order, safety and morality.

It is the duty of the Local Government to promote the general welfare and safeguards the morals and well-being if its constituents.

**BE IT ORDAINED**, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

**Section 1. TITLE-** This Ordinance shall be known as the "Anti-Gambling and Illegal Gaming Ordinance."

**Section 2. PURPOSE-** The purpose of this ordinance is to prohibit gambling and illegal gaming from proliferating in the Municipality as these acts are inimical to the welfare or morals of the people of the community, and greatly influence the individuals to disregard the value of dignified work, perseverance and thrift.

**Section 3. DEFINITION OF TERMS-** The following terms shall mean:

- 1) Card Games- are games that involve the use of playing cards or "baraha" such as but not limited to black jack, lucky nine, pusoy or poker, tong-its, baccarat and the likes.
- 2) Illegal- refers to anything contrary to law.
- 3) Gambling- refers to series of activities of gaming and betting.
- 4) Practices- refers to any activities related to gambling.
- 5) Cockfighting (tare-tare)- done outside cockfight arena.
- 6) Bingo- refers to a lottery game where cards with grids are being used on which five numbers that are covered in a row in any direction constitutes a win.
- 7) Slot Machine- is a gambling machine that creates a game of chance for its customers.
- 8) Online games with bet money- is a video game that is either partially or primarily played through the internet or any other computer network available.
- 9) Billiards with bet money- games played on a billiard table in which cues are used to strike balls against each other.
- 10) Mechanical game inventions- any game based on chance rather than skills.

**Section 4. GENERAL PROHIBITION ON GAMBLING-** All forms of illegal and unregulated gambling activities with bet money are hereby prohibited in the Municipality of Carmen, Surigao del Sur.

**Section 5. EXEMPTIONS-** In accordance with existing laws, gambling may be allowed provided these are covered by franchise from the national government, authorized permit or licensed by the government agencies duly empowered by law or their charters to license or authorize the conduct of



such games or activities or is conducted in a manner that does not violate the terms and conditions duly prescribed by the said government agencies.

**Section 6. PENALTIES** - Any person who violates the provisions of this ordinance shall be fined as follows:

|                       |   |                                               |
|-----------------------|---|-----------------------------------------------|
| <b>First Offense</b>  | - | One Thousand Pesos (Php1,000.00)              |
| <b>Second Offense</b> | - | One Thousand Five Hundred Pesos (Php1,500.00) |
| <b>Third Offense</b>  | - | Two Thousand Five Hundred Pesos (Php2,500.00) |

If the offender or perpetrator is a Public Employee or Officer, the penalty imposed shall be in its maximum without prejudice to the filing of appropriate administrative case.

**Section 7. CONFISCATION AND FORFEITURE** - any gambling paraphernalia or equipment including the bet money, found in violation of this ordinance shall be confiscated and forfeited in favor of the Local Government Unit.

**Section 8. IMPLEMENTING RULES AND REGULATIONS-** The Municipal Mayor in coordination with the Philippine National Police, shall promulgate the necessary rules and regulations to implement this ordinance.

**Section 9. PAYMENT-** Fines shall be paid to the Office of the Municipal Treasurer based on the citation ticket issued by the PNP.

**Section 10. SEPARABILITY CLAUSE-** If for any reason, any provision, portion or part of this ordinance found to be inconsistent with any law, other provisions or part thereof not affected shall remain in full force and effect.

**Section 11. REPEALING CLAUSE-** All provisions of Municipal Ordinances, Orders or regulations inconsistent herewith is hereby amended, modified or repealed accordingly.

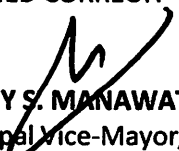
**Section 12. EFFECTIVITY CLAUSE-** This Ordinance shall take effect upon its approval and posting on three conspicuous places.

**ENACTED** this 17<sup>th</sup> day of September, 2024 at Carmen, Surigao del Sur.

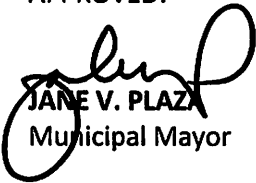
**I HEREBY ATTEST** to the correctness of the foregoing ordinance.

  
**MA. JULINA T. BORDA- JUTILO, LLB., J.D.**  
Secretary to the Sangguniang Bayan

**CERTIFIED CORRECT:**

  
**HARVEY S. MANAWATAO**  
Municipal Vice-Mayor/  
Presiding Officer

**APPROVED:**

  
**JANE V. PLAZA**  
Municipal Mayor